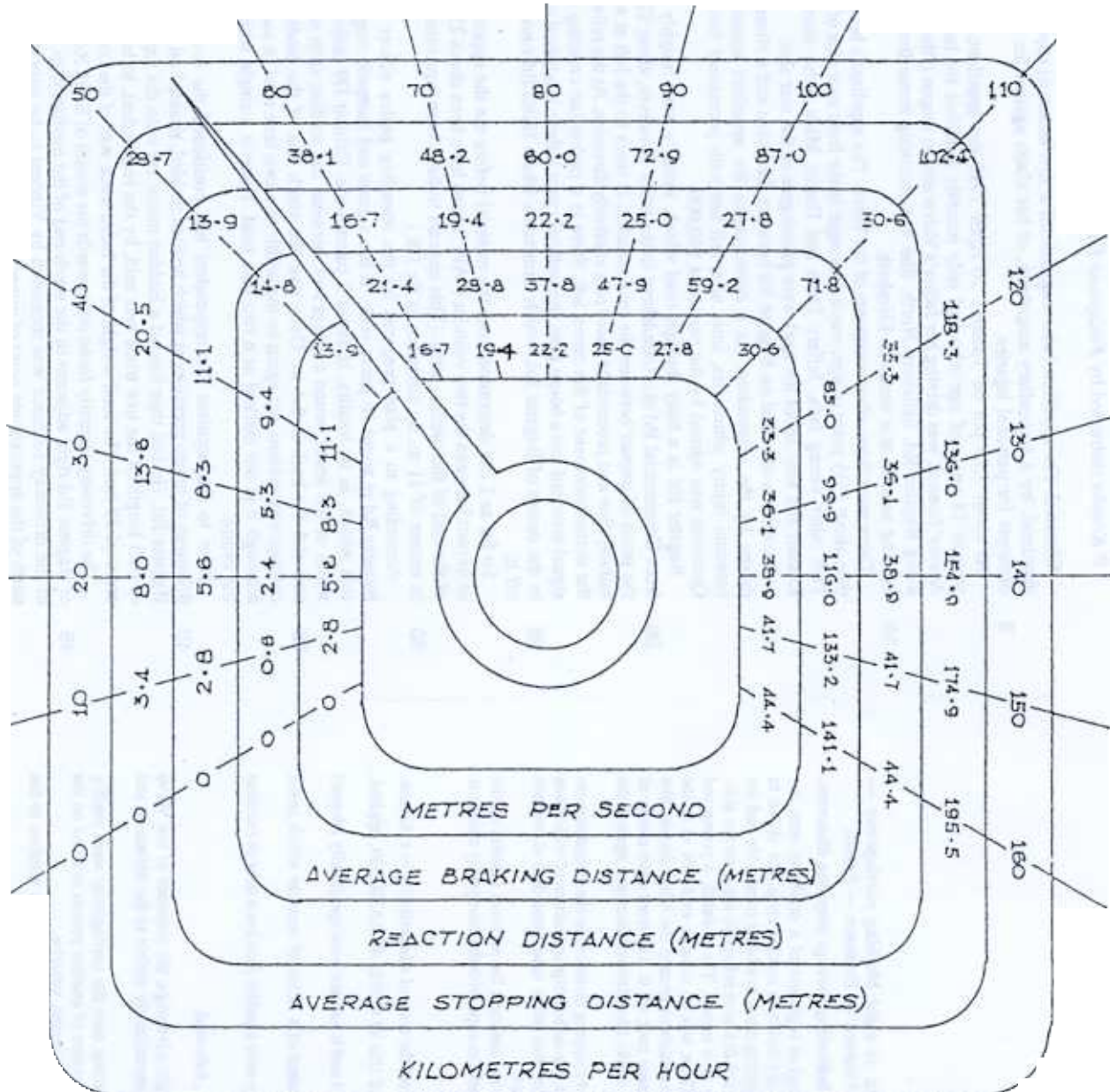


[415] This special speedometer shows the average stopping distance which an *alert* driver would obtain when driving a *car* which is in *good condition* on a *dry sealed roadway



Remember: — if you are not as alert as you should be,
 — if your tyres or brakes are not in good condition,
 — if the road is wet or the surface loose

These distances could be more than doubled
(brake efficiency based on 65%)

McADAM v ROBERTSON**SUPREME COURT OF SOUTH AUSTRALIA****OLSSON J**

13 Feruary 1998 Adelaide

Negligence — Driveways — Truck emerging at night blocking carriageway — Oncoming car running into rear of truck as it turned — Evidence — Speed.

Braking times — Use of chart by magistrate indicating average stopping distances.

The defendant drove a tow truck (30 feet long) at night out of a driveway onto the southbound carriageway (5.4 m wide) of a road divided by a median strip. His vision to the right as he turned left was limited as he was exiting close to a blind corner. He had the headlights on. The truck did not have side lights but did have reflective signs on the side. The truck blocked the whole of the carriageway as it turned. The plaintiff, a young and inexperienced driver, was driving a Volvo car. There was no reliable evidence as to the speed she was travelling as she came out of a roundabout around the blind corner. She swerved onto the median strip on her right and came back off it. The front right corner of the Volvo went under the left corner of the tow truck. She claimed damages against the defendant.

There was no expert evidence as to braking and stopping distances in the circumstances prevailing at the time. The magistrate used a chart, the authorship and source of which was not known, indicating average stopping distances and other associated data at various speeds which he deemed accurate and undisputed.

The magistrate dismissed the plaintiff's action for damages for personal injuries on the ground that she was solely to blame for being unable to cope with the emergency situation. The plaintiff appealed.

Held, allowing the appeal:

(i) The chart used by the magistrate did not meet the tests of admissibility in evidence.

Casley Smith v F S Evans & Sons Pty Ltd (No 4) (1988) 49 SASR 339, applied.

(ii) The validity of the chart had not been tested and it had not been specifically adopted by the respective counsel.

(iii) The figures in the chart did not take account of a series of variable which could properly affect those figures.

(iv) A vehicle proposing to exit private property onto a public road has a duty to exercise reasonable care.

Butcher v Saunders (1997) 25 MVR 531, followed.

(v) On the evidence, from his position of height advantage, the presence of the Volvo with its illuminated headlights must have been intermittently visible to the defendant and his lookout must plainly have been defective.

(vi) On the evidence, the risks involved in exiting onto the carriageway were readily capable of being minimised by obtaining the assistance of another person to stand on the median strip to make sure the road was clear of oncoming vehicles.

(vii) On the evidence, the defendant played a major causative role in relation to the accident which occurred.

(viii) Liability should be apportioned 70% against the defendant and 30% against the plaintiff.

T Gray QC and A Tokley instructed by *T A Fairclough* for the appellant.

B Krupka instructed by *Finlaysons* for the respondent.

Olsson J. The appellant (who was plaintiff at first instance) appeals against the dismissal, by a stipendiary magistrate, of her claim against the respondent for damages for personal injuries.

At about 7.25 pm on Tuesday 20 April 1993 the appellant, then a young woman 18 years of age who had only recently qualified for her probationary drivers' licence, was driving her father's Volvo station wagon ("the Volvo") south along Bagster Rd, Salisbury North. She was returning home from a basketball training session at a venue in Elizabeth.

There were three other occupants of the Volvo. The appellant's brother Russell, then about 15½ years of age, was a passenger in the front near side of the vehicle. Two other young lads, Jeffery Dean and Daniel Micu (who were friends of Russell and also about his age) were passengers in the rear seat.

A collision occurred on Bagster Rd between the Volvo and a Nissan tow truck driven by the respondent. As a consequence the appellant sustained serious personal injury which has, inter alia, left her with permanent facial scarring. Quantum was agreed by the parties at \$60,000.

Bagster Rd is a busy through road which, initially, runs roughly south west from Commercial Rd at a roundabout in the latter. However, about 82 m prior to the point of impact between the two vehicles, it veers to the left at and across a railway line and proceeds in more of a southerly direction. At the railway line, on the commencement of the curve left, there is a pedestrian crossing complex, a signal standard and a boom gate. Immediately past it there is a raised median strip in the centre of Bagster Rd, which terminates where Edith Rd runs to the west, off it.

So far as I can determine from the material before me the approximate point of impact between the two vehicles ("API") must have been about 23 paces south of the end of the median strip. (This appears to have been equivalent to slightly in excess of 11 m, by reference to Ex D9.)

According to a plan prepared by the attending police officer ("Vincent"), Bagster Rd is about 16 paces wide. It has a grass and footpath verge on its east side which, in its totality, is about 5 paces wide. Exhibit D9 indicates that the width of the south bound carriageway, between the median strip near its south end and the kerb is 5.4 m. Once past the south end of the median strip that carriageway widens out again to the width of a two lane road in each direction, although it is not marked as a two lane road. There is a single white line down the centre.

Prior to the accident the respondent had positioned the tow truck on the driveway of house premises at which he then resided, situated on the east side of Bagster Rd. He had then loaded a Holden motor car onto the top tray of it. The overall length of the tow truck was said, by the respondent, to have been of the order of 30 feet. The total weight of the laden truck was of the order of 4 tonnes.

The driveway virtually faced out towards the mouth of Edith Rd on the far side of Bagster Rd right adjacent to the south end of the median strip. The south side of the driveway entrance was measured by Vincent to be only about 8½ paces north of the approximate point of impact ("API"). The API was about 5 paces out towards the centre line of the carriageway, measured from the east kerb alignment.

The evidence given by the respondent was to the effect that, when he loaded the Holden on to the tray of the tow truck, the front of that truck would have been